

ORDINANCE NO. 549

AN ORDINANCE AMENDING SECTION 7 OF ORDINANCE NO. 359, AS AMENDED, BEING THE ZONING REGULATIONS OF THE CITY OF RECTOR, ARKANSAS; ESTABLISHING UPDATED BUILDING PERMIT AND ZONING ENFORCEMENT PROCEDURES; ESTABLISHING BUILDING PERMIT FEES; REPEALING ORDINANCE NO. 328 AND ORDINANCE NO. 573; AND FOR OTHER PURPOSES.

WHEREAS, the City of Rector adopted Ordinance No. 359 establishing zoning regulations for the City pursuant to the municipal planning authority granted by Arkansas law; and

WHEREAS, Section 7 of Ordinance No. 359 presently establishes procedures for zoning enforcement, building permits, and penalties for violations; and

WHEREAS, the City previously adopted Ordinance No. 328 establishing a separate building permit procedure, and subsequently adopted Ordinance No. 573 establishing revised building permit fees, resulting in building permit provisions being contained in separate ordinances adopted at different times; and

WHEREAS, the City Council finds that the building permit process should be administered as part of the City's zoning enforcement system so that permit applications may be reviewed under a clear and consistent procedure; and

WHEREAS, the City Council further finds that Ordinance No. 328, enacted in 1976, contains administrative provisions that are no longer consistent with the enforcement structure established by Ordinance No. 359, as amended; and

WHEREAS, the City of Rector Comprehensive Land Use Plan 2025-2030 encourages the City to remove or clarify outdated zoning barriers, promote property investment, encourage development within the existing City limits, and establish a practical and predictable land-use system; and

WHEREAS, pursuant to Arkansas Code Annotated § 14-56-422 and Section 9 of Ordinance No. 359, the Rector Planning Commission conducted a duly noticed public hearing concerning this amendment and thereafter recommended the proposed amendment to the City Council;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS:

Section 1. Amendment Of section 7 Of Ordinance NO. 359

Section 7 of Ordinance No. 359, as amended, is hereby repealed and replaced in its entirety to read as follows:

Section 7: Enforcement

Article 7-1. Enforcement Officer

- A. The provisions of this Ordinance shall be administered and enforced by the Enforcement Officer designated by the City Council of Rector.
- B. The Enforcement Officer shall serve as the administrative officer responsible for reviewing applications, issuing or denying permits, investigating apparent violations, issuing notices and Stop-Work Orders when authorized by this Section, and performing such other administrative duties as are assigned by this Ordinance or other duly adopted ordinances of the City.
- C. Nothing in this Section shall authorize the Enforcement Officer to grant a variance from the requirements of this Ordinance or to permit a use that is not otherwise authorized by the applicable zoning district.

Article 7-2. Building Permit Required

- A. No person, firm, corporation, property owner, contractor, or authorized agent shall commence, place, erect, construct, structurally alter, enlarge, relocate, convert, reconstruct, or install any structure or building within the incorporated limits of the City of Rector without first obtaining a Building Permit from the City when such work involves any of the following:
 - 1. Construction of any new principal building or principal structure;
 - 2. Construction of any detached accessory building or accessory structure, except as specifically exempted by Article 7-3;
 - 3. Any addition to an existing building or structure which increases its footprint, height, or enclosed floor area;
 - 4. Any structural alteration which changes the exterior dimensions, structure placement, use classification, required setbacks, or zoning compliance status of an existing structure;
 - 5. Relocation of any building, manufactured home, or other roofed structure onto, within, or across any lot or parcel;
 - 6. Installation, placement, or relocation of any manufactured home, mobile home, or prefabricated residential structure regulated by this Ordinance; or
 - 7. Any development activity for which zoning compliance verification is otherwise expressly required by this Ordinance.

- B. A Building Permit required by this Article shall be in addition to any Certificate of Zoning Compliance, Foundation Permit, petition for placement, or other approval specifically required for a manufactured home under Article 5-7.
- C. Issuance of a Building Permit shall not relieve any property owner, applicant, contractor, or other person from complying with any other applicable provision of this Ordinance or other applicable municipal, state, or federal requirement.

Article 7-3. Exemptions

- A. A Building Permit under Article 7-2 shall not be required for the following activities unless a permit is otherwise expressly required by another City ordinance:
 - 1. Ordinary repairs, maintenance, or replacement in kind which do not alter the structural footprint, use, occupancy, or zoning compliance of a building or structure;
 - 2. Construction, repair, replacement, or enlargement of an uncovered and unenclosed residential deck, stoop, landing, or similar outdoor platform, provided that it does not support a roof or enclosure and does not create habitable or enclosed floor area;
 - 3. Painting, siding replacement, roofing replacement, window replacement, or interior remodeling not involving structural expansion;
 - 4. Portable play equipment, yard furniture, sidewalks, driveways, landscaping improvements, and similar minor site improvements;
 - 5. Temporary or nonpermanent movable items which do not constitute a structure as defined by this Ordinance; and
 - 6. A detached, prefabricated residential storage building or similar accessory structure which:
 - a. Is not constructed upon or permanently attached to a poured foundation, footing, or other permanent anchoring system;
 - b. Does not contain plumbing, electrical service, or facilities intended for human habitation or commercial occupancy;
 - c. Is capable of being relocated without demolition or substantial reconstruction; and
 - d. Is placed in compliance with the applicable setbacks, yards, easements, rights-of-way, and other requirements of this Ordinance.
- B. The exemption established by subsection A(2) for decks, stoops, landings, and similar platforms shall cease to apply when a roof, walls, screening, or

other enclosure is added or when the work creates or expands habitable or enclosed floor area.

- C. The exemption established by subsection A(6) shall not apply to a carport, garage, dwelling, manufactured home, roofed addition attached to another structure, or any structure used for human habitation or commercial occupancy.
- D. The Enforcement Officer may provide zoning-placement guidance concerning an exempt accessory structure upon request. Such guidance shall not constitute a survey, certification, or legal determination of property boundaries.
- E. Exemption from the Building Permit requirement shall not exempt any person, property, building, or structure from compliance with the setbacks, yards, easements, rights-of-way, use restrictions, floodplain requirements, or other applicable provisions of this Ordinance or other applicable law.

Article 7-4. Application Requirements

- A. Every application for a Building Permit shall be submitted to the Enforcement Officer upon forms approved by the City.
- B. An application shall contain, at a minimum:
 - 1. The name, mailing address, and telephone number of the property owner and applicant;
 - 2. The street address or legal description of the property;
 - 3. A site sketch or plot plan showing, to the extent reasonably necessary to determine zoning compliance:
 - a. Property boundaries to the extent reasonably known;
 - b. The location of existing structures;
 - c. The location and dimensions of the proposed construction;
 - d. The proposed distances from applicable property lines, streets, alleys, and adjacent structures;
 - 4. A general description of the proposed work;
 - 5. The intended use of the building or structure;
 - 6. The estimated construction cost or fair market project value when necessary for calculation of the Building Permit fee; and
 - 7. Such additional site, dimensional, or project information as may be reasonably necessary for the Enforcement Officer to determine compliance with requirements administered by the City.
- C. A professionally prepared survey shall not be required solely by reason of this Article unless reasonably necessary to resolve a material uncertainty

concerning property boundaries or compliance with an applicable requirement.

- D. A record of Building Permit applications, supporting site plans or sketches, permits issued or denied, and related written determinations shall be maintained by the City Clerk or within the official records of the City.

Article 7-5. Review and Issuance of Building Permits

- A. The Enforcement Officer shall review each Building Permit application to determine whether the proposed location, dimensions, use, and general scope of work comply with:
 - 1. Ordinance No. 359, as amended, being the Zoning Ordinance of the City of Rector;
 - 2. Applicable floodplain and floodway requirements;
 - 3. Construction or safety codes duly adopted by the City, to the extent review or verification is reasonably within the duties and qualifications of the Enforcement Officer; and
 - 4. Applicable utility-connection, access, right-of-way, or municipal-service requirements established by ordinance, adopted code, easement, or written City policy.
- B. The Enforcement Officer may require such reasonable information as is necessary to determine compliance with requirements administered by the City.
- C. When specialized technical review, inspection, certification, or approval is required by state law or a duly adopted code and is outside the duties or qualifications of the Enforcement Officer, the applicant shall obtain the necessary review, inspection, certification, or approval from the appropriately qualified person or agency.
- D. A Building Permit shall be issued when the application demonstrates compliance with the applicable requirements administered under this Article.
- E. No Building Permit shall be issued when the proposed work is shown to violate an applicable requirement administered under this Article unless the applicant first obtains a variance or other relief lawfully authorized by this Ordinance.
- F. Issuance of a Building Permit confirms only that the application has been approved based upon the information submitted and the municipal requirements reviewed by the City.
- G. Issuance of a Building Permit shall not constitute a warranty or certification by the City concerning structural integrity, workmanship, property boundaries, or compliance with any technical code for which the City has not per-

formed the applicable inspection or review.

Article 7-6. Variances and Noncomplying Applications

- A. When a proposed project cannot comply with a dimensional or physical requirement of this Ordinance, including a setback, lot-area, lot-width, height, placement, or similar zoning requirement, an applicant may seek a variance from the Board of Zoning Adjustment in accordance with Section 8 of this Ordinance and Arkansas law.
- B. No Building Permit shall be issued for work requiring such a variance unless and until the Board of Zoning Adjustment grants the necessary variance or other relief authorized by law.
- C. Nothing in this Article shall authorize a variance permitting a use that is prohibited within the applicable zoning district.

Article 7-7. Stop-Work Orders

- A. The Enforcement Officer may issue a written or posted Stop-Work Order when the Enforcement Officer determines that:
 - 1. Work requiring a Building Permit has commenced without issuance of the required permit;
 - 2. Construction is proceeding in material deviation from an approved Building Permit application when the deviation affects approved dimensions, placement, use, structural footprint, or zoning compliance; or
 - 3. Construction is proceeding in direct violation of this Ordinance or another applicable requirement administered by the Enforcement Officer, and continued work would materially affect zoning compliance, public safety, or the ability to correct the violation.
- B. A Stop-Work Order shall:
 - 1. Identify the property;
 - 2. Briefly state the reason for issuance;
 - 3. Describe the permit, correction, approval, or other action required before work may resume; and
 - 4. Provide notice that a zoning determination of the Enforcement Officer may be appealed as provided by Article 7-9.
- C. Upon issuance of a Stop-Work Order, all further work subject to the Order shall cease immediately except work reasonably necessary to secure the premises from danger, weather, unauthorized entry, or further damage.
- D. It shall be unlawful to knowingly continue work in violation of a Stop-Work

Order until authorized by the City.

Article 7-8. Permit Expiration and Extension

- A. Every Building Permit issued pursuant to this Section shall become invalid unless the work authorized by the permit is commenced in good faith within six (6) months after the date of issuance.
- B. After work has commenced, a Building Permit shall become invalid if the work authorized by the permit is suspended or abandoned for a period of six (6) consecutive months.
- C. The Enforcement Officer may grant, in writing, one or more extensions of time, each for a period not exceeding six (6) months.
- D. An extension shall be requested in writing, and the applicant shall demonstrate justifiable cause for the extension.
- E. No fixed deadline for completion shall apply so long as the work has commenced within the applicable time period and has not thereafter been suspended or abandoned for six (6) consecutive months.
- F. Expiration of a Building Permit does not legalize work performed in violation of this Ordinance and does not prohibit issuance of a new permit for work otherwise eligible for approval.

Article 7-9. Appeals

- A. Any person aggrieved by a final determination of the Enforcement Officer concerning the enforcement or application of this Zoning Ordinance, including a zoning-based denial of a Building Permit or zoning-based Stop-Work Order, may appeal the determination to the Board of Zoning Adjustment in accordance with Section 8 of this Ordinance.
- B. An appeal under this Article shall be filed in writing with the City Clerk within thirty (30) days after the person receives notice of the determination being appealed.
- C. Appeals from decisions of the Board of Zoning Adjustment shall be governed by Section 8 of this Ordinance and applicable Arkansas law.
- D. An appeal concerning the interpretation or enforcement of a construction, electrical, plumbing, fire, floodplain, utility, or other requirement not arising under this Zoning Ordinance shall be made according to the appeal procedure established by the applicable code or ordinance.
- E. Nothing in this Article shall enlarge or diminish the jurisdiction conferred upon the Board of Zoning Adjustment by Arkansas law.

Article 7-10. Violations, Notice, and Penalties

- A. It shall be a violation of this Ordinance for any person to:
 - 1. Commence or undertake work for which a Building Permit is required without first obtaining the required permit;
 - 2. Knowingly provide materially false or misleading information in a Building Permit application;
 - 3. Proceed with work in a material manner contrary to an approved Building Permit application when the deviation affects the location, dimensions, use, structural footprint, or zoning compliance of the project;
 - 4. Knowingly continue work in violation of a Stop-Work Order issued pursuant to this Section; or
 - 5. Fail to comply with a lawful requirement imposed under this Section.
- B. Except when a violation creates an immediate threat to public health or safety, involves continued work in violation of a Stop-Work Order, or requires immediate action to preserve the City's legal remedies, the Enforcement Officer shall provide written notice of the alleged violation and a reasonable opportunity to:
 - 1. Obtain the required permit;
 - 2. Submit corrected or additional information;
 - 3. Correct the work;
 - 4. Seek a variance or other relief when legally available; or
 - 5. Otherwise bring the property into compliance.
- C. Any person convicted of violating this Section shall be subject to a fine not exceeding One Hundred Dollars (\$100.00).
- D. When a violation is continuing in nature, each day that the violation continues after expiration of the compliance period stated in a written notice, or after issuance of an applicable Stop-Work Order requiring immediate cessation, may constitute a separate offense.
- E. Payment of a fine shall not relieve any person of the obligation to obtain a required permit or correct a substantive violation.
- F. In addition to any criminal penalty, the City may seek injunctive relief or any other remedy authorized by law to halt unlawful work or compel compliance.
- G. Alteration or removal of construction may be sought when reasonably necessary to correct a substantive violation that cannot otherwise lawfully be resolved.
- H. Failure to obtain a Building Permit, standing alone, shall not require removal

of work that is otherwise capable of being approved and brought into compliance with all applicable requirements.

Section 2. Building Permit Fees

A Building Permit shall be required whenever required by Section 7 of Ordinance No. 359, as amended by this Ordinance, regardless of whether a fee is charged.

The following fee schedule shall apply:

- A. For proposed work having an estimated project value of Two Thousand Five Hundred Dollars (\$2,500.00) or less, no Building Permit fee shall be charged.
- B. For proposed work having an estimated project value greater than Two Thousand Five Hundred Dollars (\$2,500.00), but not exceeding Ten Thousand Dollars (\$10,000.00), the Building Permit fee shall be Fifty Dollars (\$50.00).
- C. For proposed work having an estimated project value greater than Ten Thousand Dollars (\$10,000.00), the Building Permit fee shall be Fifty Dollars (\$50.00), plus Two Dollars (\$2.00) for each additional One Thousand Dollars (\$1,000.00), or fraction thereof, by which the project value exceeds Ten Thousand Dollars (\$10,000.00).
- D. In no event shall the Building Permit fee imposed under this Section exceed Two Thousand Dollars (\$2,000.00) for a single permit.
- E. Project value shall include the reasonable value of labor and materials necessary to complete the work subject to the permit.

Section 3. Repeal Of ordinance NO. 328

Ordinance No. 328, entitled the Building Permit Ordinance, is hereby repealed in its entirety and superseded by Section 7 of Ordinance No. 359, as amended herein, and the Building Permit fee provisions established by this Ordinance.

Section 4. Repeal Of Ordinance NO. 573

Ordinance No. 573, establishing Building Permit fees, is hereby repealed in its entirety and superseded by the fee schedule established in Section 2 of this Ordinance.

Section 5. Relationship To Ordinance NO. 359

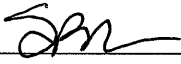
Except as expressly amended by this Ordinance, Ordinance No. 359 and all duly adopted amendments thereto shall remain in full force and effect.

Section 6. Severability

The provisions of this Ordinance are hereby declared to be severable. If any section, article, paragraph, sentence, clause, phrase, or portion of this Ordinance is held invalid or unconstitutional by a court of competent jurisdiction, such determination shall not affect the validity of the remaining portions of this Ordinance.

Section 7. Repealer

All ordinances or parts of ordinances in conflict with this Ordinance are hereby repealed to the extent of such conflict.

PASSED AND APPROVED this 10th day of SEPTEMBER 2026.
Mayor  City Clerk 